

TENTATIVE RULINGS

Date: July 23, 2026

#	Case Name	Tentative
3.	30-2025-01479293 Dalton vs. Ford Motor Company	1. Motion to Strike or Tax Costs Defendant Ford Motor Company (“Ford”) moves to strike or tax costs in plaintiff Evan E. Dalton’s (“Plaintiff”) Memorandum of Costs filed on May 27, 2026. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) Items not mentioned in section 1033.5 may be allowed or denied in the court’s discretion. (Code Civ. Proc., § 1033.5(c)(4).) “If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the plaintiff.” (<i>Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co.</i> (1963) 217 Cal.App.2d 678, 698.) “The court’s first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation.] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) Ford seeks to tax the \$1,709.50 in deposition costs for Ford’s corporate representative, Eric Kalis. Costs incurred in taking, video recording, and transcribing necessary depositions are recoverable. (Code Civ. Proc., § 1033.5(a)(3)(A).) Ford argues this deposition was not reasonably necessary and was instead designed solely to increase fees and costs. However, Ford has not presented any evidence in support of its argument and therefore has not met its burden to show the cost to be unnecessary or unreasonable. Thus, the Motion to Tax as to Item 4 is DENIED. Ford seeks to tax the \$75.00 under Item 15 incurred for court appearance professionals, arguing that it is not appropriate to have appearance attorneys who lack personal knowledge to handle court hearings and, even so, fees for appearance attorneys are attorney fees, not costs. This item does not fall within any of the enumerated categories in section 1033.5. However, as Plaintiff points out, attendance at court hearings is not optional and if counsel is unable to attend, a fee for an appearance attorney is reasonably incurred. Thus, the Motion to Tax as to Item 15 is also DENIED. Moving party to give notice.